

25SMCV06571 25SMCV06571

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-14

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TENTATIVE

RULING

DEPARTMENT

207

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MATTER

Request

for Default Judgment

This case arises from a dispute concerning an outstanding debt for freight-related services.

The operative First Amended Complaint ("FAC") was filed on April 17, 2026 by Plaintiff Coface North America Insurance Company as Subrogee of OEC Freight (NY), Inc. ("Plaintiff") against Defendants Imagination Gaming, Inc. dba Imagination Gaming ("Defendant") and Does 1-20 inclusive. The FAC alleges a

single cause of action for common counts, seeking \$53,323.53.

Defendant was served via substitute service on April 27, 2026. Default was entered against Defendant on July 1, 2026 and the Doe defendants were dismissed on July 20, 2026.

Plaintiff now requests default judgment in the amount of \$65,300.27, comprised of special damages as demanded in the FAC in the amount of \$53,323.53, prejudgment interest in the amount of \$11,336.74, and costs in the amount of \$640.

A. Damages

Plaintiff's operative FAC seeks special damages in the amount of \$53,323.53. (See Complaint ¶¶ 10, CC-2.) Therefore, Plaintiff does not seek damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

In support of the request, Plaintiff advances the Declaration of Zach Spencer, Plaintiff's custodian of records, which provides as follows:

3. Within four years preceding the commencement of this action, at the special instance and request of DEFENDANT, PLAINTIFF provided freight related service to said DEFENDANT. Attached hereto and incorporated by reference herein as Exhibit "A" is the true and correct copy of the Invoice/Statement of Account reflecting an outstanding balance totaling \$53,323.53 that DEFENDANT owes the PLAINTIFF. To date, no payments have been received by PLAINTIFF for this outstanding balance.

5. Said DEFENDANT, has failed and refused to pay to PLAINTIFF herein the money earned by PLAINTIFF for the goods, wares and merchandise, and/or services provided by PLAINTIFF for the benefit of DEFENDANT, and at DEFENDANT's sole request, although demand for payment has been made, and there is now due, owing and unpaid from DEFENDANT, to PLAINTIFF the sum of \$53323.53.

(Spencer

Decl. ¶¶ 3, 5.) Indeed, attached as

Exhibit A is a statement demonstrating an outstanding balance of \$53,323.53, as requested.

Therefore, the Court finds that

Plaintiff is entitled to the requested \$53,323.53 in damages.

B. Prejudgment Interest

Plaintiff

seeks prejudgment interest at a rate of 10% for the 776 days from the default date of May 28, 2024.

However,

the default interest rate on an action not arising from a contract is 7%. (Compare Civ. Code, § 3287, subd. (c) [7% default interest rate] with § 3289, subd (c) [10% interest rate for actions on a contract].)

Therefore,

the Court grants in part Plaintiff's request for prejudgment interest in the amount of \$7,935.71.

C. Costs

Code of Civil Procedure

section 1033.5 outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032. The

Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a

defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

Plaintiff seeks costs in the amount

of \$640, comprised of \$370 in filing fees and \$270 in process server fees. (CIV-100.) Plaintiff's request for costs is granted as Plaintiff is the prevailing party in this action. (Code

Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

Plaintiff's

request for default judgment is granted in part in the amount of \$61,899.24

comprised of \$53,323.53 in special damages, \$7,935.71 in prejudgment interest, and costs in the amount of \$640.

If Plaintiff

submits to the Court's tentative ruling, the Court will enter the proposed Judgment in conformity with the ruling.

DATED: September 14, 2026 /s/ _____

Michael

E. Whitaker

Judge

of the Superior Court